

23STCV22632 23STCV22632

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 23STCV22632 Hearing Date: August 19, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV22632

BERNARD

ABAD vs SUPERIOR GROCERS , INC.

August

19, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT SUPER CENTER CONCEPTS, INC. DBA SUPERIOR GROCERS' PETITION TO CONFIRM
CONTRACTUAL ARBITRATION AWARD.

RULING:

The Court grants the Petition.

Within 10 days, Defendant shall serve and lodge a proposed Judgment conforming to the Arbitration Award as made for the Court's signature and filing.

Defendant to give notice.

I.

BACKGROUND

On September 19, 2023, BERNARD

ABAD (Plaintiff) filed a Complaint against SUPERIOR GROCERS, INC. (Defendant), alleging race, disability and age discrimination, and harassment and retaliation, while employed by Defendant.

On June 30, 2026, Plaintiff

filed the Petition to Vacate Arbitration Award, which the Court denied via the Minutes entered on August 7, 2026.

On June 30, 2026,

Defendant filed the form Petition to Confirm Arbitration Award.

There is no Opposition

filed as to this Motion.

II.

LEGAL STANDARD

"[W]here parties have agreed their dispute will be resolved by binding arbitration, judicial intervention is limited to reviewing the award to see if statutory grounds for vacating or correcting the award exist." (Corona v. Amherst (2003) 107 Cal.App.4th 701, 706.)

Procedurally, a petition

to confirm, correct or vacate an arbitration award shall include references to the agreement to arbitrate, names of arbitrators and the award. (Code Civ. Proc., § 1285.4; Loeb v. Record

(2008) 162 Cal.App.4th 431, 450.)

As to petitions to confirm arbitration awards, petitioners bear the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. (Toal v. Tardif (2009) 178 Cal.App.4th 1208, 1220.)

III.

ANALYSIS

Defendant petitions for confirmation of the Arbitration Award, based on the official form Petition to Confirm Contractual Arbitration Award, having attached the Arbitration Agreement and Arbitration Award.

Unless a petition or response seeking to correct or vacate an arbitration award was filed properly based upon valid grounds, or the proceeding is dismissed, courts are required to enter judgment in conformity with the award. (Valsan Partners Ltd. Partnership v. Calcor Space Facility (1994) 25 Cal.App.4th 809, 818.) “[T]he court shall confirm the award as made ..., unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Law Offices of David S. Karton v. Segreto (2009) 176 Cal.App.4th 1, 8.)

While Plaintiff filed the Petition to Vacate the Award, the Court did not grant it based upon any valid grounds, which here means that the Court is to confirm the Award as made.

IV.

CONCLUSION

Accordingly, the Court grants the Petition to Confirm Arbitration Award.